

TENTATIVE RULING

Case: **Lopez v. City of Woodland et al.**
 Case No. CV2025-0215

Hearing Date: **March 25, 2026** **Department Eleven** **9:00 a.m.**

Motion for order nunc pro tunc:

Plaintiff Niko Lopez’ motion for order nunc pro tunc to set amended complaint filing date as July 14, 2025, is **GRANTED**. The Court finds that the complaint presented for filing on July 14, 2025, was presented to the clerk for filing in a form that complied with state law and should not have been rejected. (Cal. Rules of Court, rules 2.100 – 2.110; *Carlson v. Department of Fish & Game* (1998) 68 Cal.App.4th 1268, 127; Kim Decl., ¶¶ 2, 4, 5, Exhibits A – C.)

The effective date of the filing of plaintiff’s first amended complaint **SHALL** be **July 14, 2025**.

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Demurrer:

Given the Court’s ruling on plaintiff Niko Lopez’ motion for order nunc pro tunc to set amended complaint filing date as July 14, 2025, defendant City of Woodland’s demurrer to plaintiff’s first amended complaint is **OVERRULED** as moot.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Malik v. Flagstar Bank, N.A.**
Case No. CV2025-0929

Hearing Date: **March 25, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Nadir Malik's opposition to defendant Flagstar Bank, N.A.'s motion for judgment on the pleadings exceeds the 15-page limit set forth in California Rules of Court, rule 3.1113(d) without prior court approval. (See Cal. Rules of Court, rule 3.1113(d), (e).) Despite the foregoing, the Court will consider the entire opposition. (Cal. Rules of Court, rule 3.1113(g) [oversize brief to be treated as a late-filed brief]; Cal. Rules of Court, rule 3.1300(d) [court has discretion to consider a late filed paper]; *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 ["a trial court has broad discretion to accept or reject late-filed papers."].) However, in the future, the Court may decline to consider any argument or legal authority found in pages exceeding the maximum permitted number of pages.

Based on plaintiff's opposition stating that he recently retained new counsel who reviewed his case file and prepared a second amended complaint that addresses each of the deficiencies identified in defendant's motion for judgment on the pleadings, the Court will allow plaintiff time to file a motion to file a second amended complaint. (Code Civ. Proc., § 473, subd. (a); Opp., p. 2; Warwick Decl., ¶¶ 2-13.) The Court finds that if a second amended complaint is filed, defendant's motion for judgment on the pleadings will be moot. If a second amended complaint is not filed, the Court will rule on defendant's motion for judgment on the pleadings. Therefore, on the Court's own motion, defendant's motion for judgment on the pleadings is **CONTINUED to May 19, 2026**, at 9:00 a.m. in Department Eleven.